



**МИНИСТЕРСТВО ИНОСТРАННЫХ ДЕЛ**

**ПРИВИЛЕГИРОВАННЫЕ ИНСТРУКЦИИ**

**PRIVILEGED INSTRUCTIONS**

**Ministry of Foreign Affairs  
RUSSIAN FEDERATION**



Министерство иностранных дел Российской Федерации

The Ministry of Foreign Affairs of the Russian Federation

## Privileged Instructions

### Fundamental Principles:

- Terrorism and support of terrorism are not to be tolerated.
- The international community have no right to interfere in the internal affairs of India.

### Desired End State(s):

- Cessation of Pakistani support of terror and end to the terrorist problem.
- Jammu and Kashmir does not become an independent entity.

### Delegation Instructions

*Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.*

**PRIMARY GUIDANCE:** Our main goals are to persuade Pakistan to make significant and credible commitments to counterterrorism efforts and to protect and enhance our bilateral relationship with India. Discussions with countries such as Pakistan on issues that are vital to India might jeopardize our relationship with India and should therefore be avoided. We believe India and Pakistan should resolve issues of territorial control, governance, and water sharing bilaterally whenever possible.

In general, our delegation should ally with China to further exert our influence and leadership in these negotiations. When dealing with terrorism, we must engage Pakistan, to underscore the importance of the issue. As for other matters, particularly Jammu and Kashmir's rightful place as a part of the Indian state and its right to manage its own internal affairs, our statements should align with India's public positions. To this end, we should not negotiate bilaterally with the Jammu & Kashmir delegation or initiate talks involving this party. If we participate in multilateral discussions where the Jammu & Kashmir delegation is present, terrorism issues should be prioritized.

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## Chapter Issues and Principal Negotiating Positions

### Chapter I: Territory

#### Discussion:

Both India and Pakistan claim Jammu and Kashmir in its entirety, but each currently administers separate enclaves. Possession of Jammu and Kashmir is a symbolic issue of fundamental identity: as a Muslim majority state Pakistan believes its people would be best served by being part of a Muslim country; India views Jammu and Kashmir as a representation of the diversity possible within a secular state. The Line of Control (LoC) has served as the de facto international boundary between India and Pakistan since 1948, unchanged by conflicts in 1965 and 1999. Partition is not the desired end state of either India or Pakistan yet has become a solution endorsed by most of the international community. The Jammu & Kashmir delegation's perceived goal of autonomy for the entire princely state will likely complicate negotiations and add a third (with China, fourth) claimant to the territory. Note that the Kashmir issue is not the sole obstacle to normalization of relations between India and



Pakistan. However, a mutually agreeable solution on Jammu and Kashmir could act as the key catalyst for the realization of the normalization of relations between both nations. Any solution to the Jammu Kashmir problem will require sufficient security guarantees from both India and Pakistan.

**Our Position:**

Our policy on Jammu and Kashmir has been consistent for decades. Russia believes that Jammu and Kashmir effectively acceded to India per the agreement between Nehru and Hari Singh in 1948, and that this is embedded in the Indian constitution. Likewise, India has maintained similar reserve and objectivity in its appraisal of our territorial integrity. India is an important market for Russian industrial products, particularly military hardware. In addition, India can help balance against Chinese intrusion into Central Asia and our Commonwealth of Independent States partners, where our influence has long been pivotal. However, building a stronger relationship with China would be a powerful counterweight to US regional intrusion and renewed UK interest. While improved relations with Pakistan are desirable, our relationship with India takes priority at this point and time. We are very concerned about any Jammu & Kashmir success in achieving autonomy or independence for Jammu and Kashmir, and how that might further complicate our own internal issues, especially in regards to separatist factions in Chechnya and other North Caucasus states.

**Guidance:**

Pakistan, China, and India claim parts of the Jammu and Kashmir region. Russia is both influential with these regional parties and not directly involved in the territorial disputes between them. While we currently support Indian's historic claims, our support should be lent to any agreement between the three parties that would confer additional legitimacy on our interests, regional influence, and on that agreement.

Given our close economic and military ties with India, we will continue to support India's territorial claims. The LoC has served as a de facto international boundary for decades and if it is India's wish to make that arrangement permanent, we will support New Delhi. If discussions with Pakistan on terrorism show sufficient promise, our support of India's territorial claims can be flexible or at least tempered, particularly if progress with Pakistan is seen in international forums as a testament to Russia's clout in achieving a peaceful settlement to the dispute, and if such an agreement also works to help reduce and control militants, extremists and terrorism. While we do not anticipate enough concessions from Pakistan on terrorism to warrant pressuring India on territorial claims, if significant concessions are forthcoming from Islamabad, your delegation is authorized to propose new policy and negotiation strategies to the foreign minister. If India or Pakistan makes any form of territorial concessions to Jammu & Kashmir, our concerns about both that precedent and of the possibility of Jammu and Kashmir becoming a terrorist safe haven must be assuaged. Regarding China's claims, work toward achieving stability on the Sino-Indian border as governance issues hold less sway in this sparsely populated frontier region.

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## **Chapter II: Jammu and Kashmir Governance**

**Discussion:**

Territory and governance in Jammu and Kashmir are closely linked issues. Article 370 of the Indian Constitution codified autonomy for Jammu and Kashmir with certain exceptions. Its repeal has energized movement toward autonomy and self-rule, as put forward by the Jammu & Kashmiri leadership in particular. The Jammu & Kashmiri leadership is endeavoring to consolidate support on both sides of the LoC. Both Pakistan and India support the plebiscite called for in UN Resolution 47, in which options were limited to accession to either Pakistan or India. The Jammu & Kashmiri

delegation wants to see autonomy on the ballot. There is no reliable polling data with which to predict the results of such a referendum.

**Our Position:**

We maintain that the governance of Jammu and Kashmir is an Indian internal matter. We will support India whether it should hold its line or decide to compromise. India will resist both autonomy and the independence that full autonomy may lead to; Pakistan will likely support autonomy in name only as it will likely retain full control over the Azad Kashmir government. The Jammu & Kashmiri delegation supports a plebiscite – even if not an immediate one – and claims to be a nationalist rather than sectarian organization. We cannot support an outcome that increases the legitimacy of a separatist movement because of the precedent that could set for Chechnya. We also will condemn any attempt to adopt Islamic governance practices formally or informally in Jammu and Kashmir.

**Guidance:**

India's administration of Jammu and Kashmir under Article 370 was an acceptable arrangement and could remain so. However, if India wishes to grant autonomy to Jammu and Kashmir at a level beyond Article 370, we will support India's position as long as our concerns about Jammu and Kashmir becoming a terrorist safe haven are addressed. We should follow India and Pakistan in rejecting any plebiscite that includes a full autonomy option that may lead to independence. India and Russia share a mutual concern for the rise of Islamic political organizations and the threat they pose to domestic stability.

**Red Lines:**

- No support for Islamic governance in Jammu and Kashmir.
- No support for a fully autonomous or independent Jammu and Kashmir.

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### **Chapter III: Human Rights and Displaced Persons**

**Discussion:**

Both India and Pakistan have accused each other of human rights violations, while Kashmiri groups have made their own accusations against India. The UN has signaled its interest in conducting investigations into any human rights violations in the region, but we are skeptical about any international investigations that tread on national sovereignty. Pakistan, Great Britain, and the United States support such efforts. The large numbers of internally displaced persons (IDPs) crossing the LoC and refugees fleeing into India and Pakistan complicate the political situation immensely. While these groups are now receiving humanitarian aid, we remain concerned that the aid may inadvertently end up in the hands of militants or terrorist groups.

**Our Position:**

Although we believe in international cooperation and strict adherence to international law, the protection of human rights is a domestic issue that should not be subject to international investigation. Allowing the UN to interfere in human rights investigations would set a precedent for investigations of our own country, to which we are firmly opposed. Russia should work with China who is likely to have a similar opposition to international investigations on a purely domestic issue such as human rights. Further, we have significant military-industrial relations with India and will not interfere with New Delhi's policies on handling its human rights situation. They understand that we have an interest in ensuring that any assistance does not benefit terrorist groups or insurgents.

China shares our concerns on these issues, and continued cooperation with Beijing will strengthen our ability to screen out insurgents mixed into the IPD and refugee populations.

**Guidance:**

Oppose any international investigation into human rights issues. Such investigations will set a precedent for international investigations within other countries, including Russia, which we want to avoid. We should cooperate with China on this issue given that both countries have similar goals. Moreover, a Russia-China alliance on this issue can be used to balance against the United States and Great Britain.

We will not pressure India to change its human rights policies and will only provide aid in this area upon their request.

**Red Lines:**

- No international human rights investigations in the region.
- No IPD or refugee assistance that might aid terrorist entities.